Transcription of: Declaration_13Dec1988.pdf (14 scanned pages)
Transcribed: October 13, 2026. Verbatim; original wording, spelling, and punctuation preserved.
Marks: [?] uncertain reading · [illegible] unreadable · [handwritten: …], [signature], [stamp: …], [seal: …] non-typed elements · underlined captions shown in **bold**.
See *Transcription Notes* at the end.

DECLARATION

[stamp: DOCUMENTARY SURCHARGE PAID $3.00]

[stamp: 289]

This Declaration, Made this [handwritten: 13TH] day of [handwritten: DECEMBER], 1988 by PAUL L. SCHLOSSER and DOROTHY J. SCHLOSSER, of New Castle County and State of Delaware ("Owner") and GRANVILLE DEVELOPMENT CORPORATION, a corporation of the State of Delaware, ("Equitable Owner"), Owner and Equitable Owner hereinafter referred to as "Declarant".

WITNESSETH:

Whereas, Declarant are, respectively, the Owner and the Equitable Owner of all that certain lot, piece or parcel of land, situate in Mill Creek Hundred, New Castle County and State of Delaware, as shown on the Record Major Subdivision Plan of Hunter's Ridge (the "Plan of Hunter's Ridge"), prepared by Franco R. Bellafante, Inc.; recorded _____ in the Office of the Recorder of Deeds in and for New Castle County, State of Delaware, in Microfilm No. _____ containing 47.71± acres of land, which said tract of land is described by metes and bounds in Exhibit "A" attached hereto and made a part hereof, and which said tract is hereinafter referred to as SUBJECT LAND; and

Whereas, Declarant, in connection with a recent application to develop the SUBJECT LAND as a residential development, under the lot averaging option, and desires to restrict SUBJECT LAND; and

Whereas, Declarant desires to comply with the subdivision regulations of New Castle County with respect to providing for the maintenance of certain private open spaces, traffic islands and common parking spaces;

Now, Therefore, Know All Men By These Presents, That Declarant does hereby covenant and declare that it shall hold and stand seized of SUBJECT LAND, described by metes and bounds in Exhibit "A", under and subject nevertheless to the following restrictive covenants, which it is hereby agreed shall be covenants running with the land and which shall be binding upon the Declarant, its successors and assigns, and only upon SUBJECT LAND, which said restrictive

covenants are hereby imposed for the benefit of New Castle County, a political subdivision of the State of Delaware, its successors and assigns:

1. The number of dwelling units which may be erected on SUBJECT LAND shall not exceed seventy-two (72).

2. No dwelling unit other than a single family detached house shall be constructed upon SUBJECT LAND.

3. Buildings to be used for recreational, security or maintenance purposes may be erected and maintained in locations within the "private open space" shown on the Plan of Hunter's Ridge, hereinafter referred to as Private Open Space, approved by said Declarant, its successors and assigns, provided the design of such buildings be approved by Declarant, its successors or assigns.

4. Prior to the commencement of construction of dwelling units, a storm water management plan shall be approved by the New Castle County Department of Public Works.

5. Except for the installation of utilities, including sanitary sewer and storm drainage lines, underground gas mains, water mains, water lines, and electrical cables, telephone and cable television lines, and including water facilities, consisting of a well or wells, to be located within fifteen feet (15') of the site of the present wellhead, and related above-ground facilities, not to exceed one-tenth (1/10) of one (1) acre in the aggregate, to be serviced by temporary easement only, and the construction of roads, the existing trees and other vegetation within the Private Open Space shall remain undisturbed. Any portion of the Private Open Space disturbed as a result of the installation of utilities and road construction shall be restored to its original condition consistent with good engineering practices.

6. In order that the areas designated as Private Open Space and the areas shown on the Plan of Hunter's Ridge as traffic islands, including the common parking spaces appurtenant thereto, hereinafter referred to as the "Traffic Islands", shall be maintained, there shall be organized a corporation, hereinafter referred to as a "maintenance association", whose members shall be record owners of all lots shown on said plan. With respect to such corporation:

(a) The purchaser of any lot of land by the acceptance of a deed to said land, obligates and binds himself, his heirs and assigns, to become a member of the maintenance association, and to be bound by all of its rules and regulations, and to be subject to all of the duties and obligations imposed by membership in said association.

(b) Each owner of any lot, by acceptance of a deed therefor, is deemed to covenant and agree to pay to the maintenance association (1) annual assessments or charges, and (2) special assessments for capital improvements, such assessments to be fixed, established, and collected from time to time as hereinafter provided, provided that all assessments must be fixed at a uniform rate for all lots. Each such assessment, together with such interest, costs and reasonable

attorney's fees shall be a lien upon such real property. The assessments levied by the maintenance association shall be used for the purpose of the improvement and maintenance of the Private Open Space and Traffic Islands, together with any improvements erected thereon, now or hereafter, including, but not limited to storage for maintenance and recreational tools, equipment and supplies; guard or gate house, dam or dams, bridges, courts, or paying fields; and for maintenance of security and/or maintenance personnel to the extent that such members of the association or the majority of them shall deem necessary or desirable from time to time, including, but not limited to salaries; provided further that nothing herein contained shall be construed as prohibiting the removal of any recreational, maintenance or security structures or improvements if the majority of the members of the maintenance association deem removal of any or all of same to be desirable at any time. Said assessment shall be in sufficient amount to pay the costs of keeping the Private Open Spaces and Traffic Islands and improvements thereon in good usable condition, and to pay all expenses arising from time to time in connection with the ownership of the Private Open Spaces and Traffic Islands, including, without limitation, real property taxes and insurance, to the extent that such members of the Association, or a majority of them shall deem necessary or desirable from time to time to procure insurance coverage with respect to such ownership, and to offset any uncollected prior assessments.

(c) The amount of such assessment shall be fixed annually by the board of directors of the maintenance association, and shall be charged or assessed in equal proportion against each lot regardless of size.

(d) Any assessments which are not paid when due shall be delinquent. If the assessment is not paid within thirty (30) days after the due date, the assessment shall bear interest from the date of delinquency at the legal rate of interest under Delaware law, and the maintenance association may bring an action at law against the owner personally obligated to pay the same, or foreclose the lien against the property, and the interest, costs, and reasonable attorney's fees of any such action shall be added to the amount of such assessment. No owner may waive or otherwise escape liability for the assessments provided for herein by non-use of the said common areas or abandonment of his lot.

(e) It is expressly agreed that the assessments referred to above shall be a lien or encumbrance on the land in respect to which said assessment are made and it is expressly stated that by acceptance of title to any of the land included in said tract the owner (not including mortgagee) from the time of acquiring title thereto shall be held to have covenanted and agreed to pay said assessments to the maintenance association.

(f) By his acceptance of title, each owner shall be held to vest in the maintenance association the right and power in his own name, to take and prosecute all actions or suits, legal, equitable, or otherwise, which may be in the opinion of the maintenance association, necessary or advisable for the collection of such assessments.

(g) Said assessments shall be subordinate in lien to the lien of any mortgage or mortgages on any property which is subject to such charges regardless of when said mortgage or mortgages were created cr when such charges accrued; provided that such subordination shall apply only to the charges that shall have become payable prior to the passing of title under foreclosure, of such mortgage or mortgages, and the transferee under such foreclosure shall not be liable for payment of any assessment accruing prior to said foreclosure, but nothing herein shall be held to affect the rights herein given to enforce the collection of such charges accruing after sale under foreclosure of such mortgage or mortgages and provided, further, that such charges accruing after sale shall also be subordinate in lien to the lien of any further mortgage or mortgages which are placed on the property subject to such charges, with the intent that no such charges shall at any time be prior in lien to any mortgage or mortgage whatsoever on such property.

7. Declarant shall incorporate under the laws of the State of Delaware, prior to the conveyance of the first lot hereunder to a homeowner, a non-profit corporation to be known as Hunter's Ridge Maintenance Association, hereinafter referred to as the "Association", for the benefit of all owners, which corporation shall be charged with the duty of improving and maintaining said Private Open Spaces and improvement thereon and Traffic Islands in good and usable condition, and which shall constitute the maintenance association hereinabove contemplated.

8. All the record owners shall be entitled to one (1) vote for each lot in which they hold the interest of a record fee, provided, however, that in establishing the Association Declarant may provide for classes of members in which Class A members, being members other than Declarant, may have one (1) vote per lot, and Class B members, being Declarant, may have a greater number of votes, not to exceed three (3) votes per lot. The vote for such lot shall be exercised as the owners thereof may among themselves determine, but in no event shall more than the number of votes be cast with respect to any lot in excess of that to which the class of membership of the owner entitles the owner to cast. Declarant shall be entitled to the number of votes for each lot to which it continues to hold title which the class of its membership entitles it to cast.

9. The Association shall at no time close or obstruct the Private Open Space and Traffic Islands, except insofar as the same shall be temporarily necessary for maintenance or repairs, or for reasons of safety, provided that nothing herein shall be construed as prohibiting construction or conversion of recreational, maintenance or security improvements, or improvements appurtenant thereto. The Association may adopt rules and regulations concerning the use of the Private Open Space and Traffic Islands for the benefit of all persons entitled to the use thereof.

10. These covenants and restrictions shall be taken to be real covenants running with the land and binding thereon perpetually.

11. It is the intention of these declarations that the Association will be an active corporation of the State of Delaware, and in the event that either the Declarant or the maintenance association to be hereinafter formed fail or decline to maintain said Private Open Space and Traffic Islands and improvements as aforesaid, Declarant hereby grants unto New Castle County, its successors or

assign, the right, privilege and authority to enter upon said premises and maintain Private Open Space and Traffic Islands and improvements at the expense of the owners of said lots.

12. In the event that New Castle County elects to maintain the Private Open Space and Traffic Islands or improvements as set forth in paragraph 11 above, all expense of maintenance shall be assessed prorata against the owners of each lot and shall be collectable by New Castle County in the same manner as provided in paragraph 6 above. The provisions of paragraph 6(g) above notwithstanding, any lien for such expenses of maintenance assessed by the County and filed with the Recorder of Deeds shall be a lien from the time of recording and shall have precedence in relation to other liens, either general or special, including mortgages and other liens, according to the time of recording of such liens in the proper office.

13. Declarant, for itself, its successors and assigns, grants to the lot owners the free and uninterrupted use of all the Private Open Space and Traffic Islands as shown on the said Plan of Hunter's Ridge in common with the others entitled thereto forever, SUBJECT, nevertheless, to such rules and regulations as the Association may from time to time adopt pursuant to paragraph 9 above.

14. The following definitions are applicable hereto:

(a) "Association" shall mean and refer to the maintenance association its successors and assigns, and to the proper named corporate entity to be formed as provided hereunder, which Declarant contemplates shall be called "Hunter's Ridge Maintenance Association".

(b) "Lot" shall mean and refer to any plot of land shown on any recorded subdivision plan of the SUBJECT LAND as set forth in Exhibit "A".

(c) "Member" shall mean and refer to every person or entity who holds a membership in the Association.

(d) "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of a fee simple title to any lot which is a part of the real property here set forth.

(e) "Declarant" shall mean and refer to GRANVILLE DEVELOPMENT CORPORATION, a corporation of the State of Delaware, its successors and assigns.

15. The issuance of Certificates of Occupancy for dwelling units in Hunter's Ridge development shall be proof of the performance of all of the conditions required by this Declaration.

16. The foregoing covenants shall not be modified amended or altered, in whole or in part except on approval of the County Council of New Castle County, its successors or assigns, and, following the conveyance of the SUBJECT LAND by Owner to Equitable Owner, the approval of Owner shall not be required for any such modification, amendment or alteration.

17. The foregoing restrictions shall apply to and bind only the land on the Plan of Hunter's Ridge, and in no event shall the same be construed to apply to or in any way or manner bind or affect any other lands of Declarant, whether such lands are contiguous thereto or otherwise; and no owner of any such lot or lots shall have any right or easements whether in law, equity or otherwise in and to any other lands of Declarant, any law, custom or usage to the contrary notwithstanding.

In Witness Whereof, The said GRANVILLE DEVELOPMENT CORPORATION, a Delaware corporation, has caused its name by Dennis W. Neal, its President to be hereunto set, and the common and corporate seal of the said corporation to be hereunto affixed, duly attested by its Secretary, the day and year first above written.

SIGNED, SEALED and DELIVERED
In the Presence of:

[signature] [signature] (SEAL)
PAUL L. SCHLOSSER

[signature] [signature] (SEAL)
DOROTHY J. SCHLOSSER

GRANVILLE DEVELOPMENT CORPORATION
[signature] BY: [signature]
DENNIS W. NEAL, President

ATTEST: [signature]
TERRY D. NEAL, Secretary

STATE OF DELAWARE)
) SS.
NEW CASTLE COUNTY)

Be It Remembered, That on this [handwritten: 13th] day of [handwritten: December], 1988, personally came before me, PAUL L. SCHLOSSER, party to this Declaration, known to me personally to be such, and acknowledged this Declaration to be his act and deed.

Given Under my Hand and Seal of Office the day and year aforesaid.

[signature] [seal: circular notary seal, mostly illegible; partial text "...ITED" and "...UBLIC" visible]
Notary Public
My commission expires: [handwritten: July 9, 1990]

STATE OF DELAWARE)
) SS.
NEW CASTLE COUNTY)

Be It Remembered, That on this [handwritten: 13th] day of [handwritten: December], 1988, personally came before me, DOROTHY J. SCHLOSSER, party to this Declaration, known to me personally to be such, and acknowledged this Declaration to be his act and deed.

Given Under my Hand and Seal of Office the day and year aforesaid.

[signature] [seal: circular notary seal, mostly illegible; partial text "...UBLIC" visible]
Notary Public
My commission expires: [handwritten: July 9, 1990]

STATE OF DELAWARE)
) SS.
NEW CASTLE COUNTY)

Be It Remembered, That on this [handwritten: 13th] day of [handwritten: December], 1988, personally came before me, DENNIS W. NEAL, President of GRANVILLE DEVELOPMENT CORPORATION, a corporation existing under the laws of the State of Delaware, party to this Declaration, known to me personally to be such, and acknowledged this Declaration to be his act and deed and the act and deed of the said corporation, that the signature of the President thereto is in his won proper handwriting and the seal affixed is the common and corporate seal of the said corporation, and that this act of sealing, executing, acknowledging and delivering said Declaration was duly authorized by a resolution of the Board of Directors of said corporation.

Given Under my Hand and Seal of Office the day and year aforesaid.

[signature]
Notary Public
My commission expires: [handwritten: July 9th, 1990]

[seal: circular notary seal with dotted borders, stamped over the signature and commission line; mostly illegible; fragments "...TES..." and "...TARY P..." visible]

6 January 1989
Project: Lot Nos. 1 - 21, inclusive
Project No. 8028

Description of property situate in Mill Creek Hundred, New Castle County, State of Delaware, being Lot No's 1-21 inclusive, as shown on the Record Major Subdivision Plan of Hunters Ridge, prepared by Franco R. Bellafante, Inc.; recorded in the Office of the Recorder of Deeds in

and for New Castle County, State of Delaware, in Microfilm No. . The said property being more particularly bounded and described as follows, to wit:

Beginning at a point on the northerly side of Polly Drummond Road, also known as Ebenezer Church Road; said point being the northwesterly end of the junction curve having a radius of 30.00', joining the northeasterly side of Polly Drummond Road with the northwesterly side of Haystack Drive at 60 feet wide;

Thence from the point and place of Beginning, along the northerly side of Polly Drummond Road, said side being distant 40 feet at right angles from the center line of Polly Drummond Road, North 36°-24'-01" West, 643.26' to a corner of the Silverwood Subdivision;

Thence along the Subdivision of Silverwood by the following five (5) courses and distances: (1) North 60°-37'-17" East, 573.52' to a corner, (2) North 61°-00'-12" East, 839.85' to a corner; (3) North 52°-30'-44" East, 198.00' to a corner; (4) North 45°-51'-27" East, 219.94' to a corner; and (5) North 41°-12'-16" East, 127.97' to a corner of Lot No. 21, Hunter's Ridge and a one acre parcel to be conveyed to Ralph and Kathleen Degli Obizzi, as shown on the plan of Hunter's Ridge;

Thence leaving the subdivision line of Silverwood, along the division line between the one acre parcel and Lot No. 21, by the following two (2) courses and distances: (1) South 64°-50'-00" East, 80.66'; and (2) South 34°-30'-00" East, 172.14' to a corner on the northwesterly side of Palomino Drive, at 50 feet wide;

Thence along the northwesterly side of Palomino Drive, by the following two (2) courses and distances: (1) South 55°-30'-00" West, 326.13' to a point of curvature; and (2) by a curve to the left, having a radius of 200.00', an arc length of 131.20' to the northeasterly end of a junction curve, having a radius of 25.00', joining the northwesterly side of Palomino Drive, at 50 feet wide with the northerly side of Haystack Drive, at 50 feet wide;

Thence by said curve to the right, an arc length of 29.22' to the westerly end of said junction curve;

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Thence along the sides of Haystack Drive by the following sixteen (16) courses and distances: (1) by a curve to the left, having a radius of 205.00', an arc length of 91.72' to a point of reverse curvature; (2) by a curve to the right, having a radius of 30.00', an arc length of 37.17' to a point of reverse curvature; (3) by a curve to the left, having a radius of 52.00', an arc length of 138.51' to a point of reverse curvature; (4) by a curve to the right, having a radius of 30.00', an arc length of 39.73' to a point of tangency; (5) South 53°-30'-00" West, 202.48' to a point of curvature; (6) by a curve to the right, having a radius of 30.00', an arc length of 47.12' to a point of tangency;

(7) North 36°-30'-00" West, 15.00', to a point of curvature; (8) by a curve to the left, having a radius of 50.00', an arc length of 78.54' to a point of tangency; (9) South 53°-30'-00" West, 60.00' to a point of curvature; (10) by a curve to the left, having a radius of 50.00', an arc length of 78.54' to a point of tangency; (11) South 36°-30'-00" East, 34.25' to a point of curvature; (12) by a curve to the right, having a radius of 30.00', an arc length of 34.48' to a point of reverse curvature; (13) by a curve to the left, having a radius of 190.00', an arc length of 77.44' to a point of tangency; (14) South 06°-00'-00" West 182.59' to a point of curvature; (15) by a curve to the left having a radius of 315.00' and arc length 250.15' to a point of tangency; (16) South 51°-30'-00" west 408.75' to the northeasterly end of the junction curve joining the northwesterly side of Haystack Drive with the northeasterly side of Polly Drummond Road;

Thence by said curve to the right having a radius of 30.00' and arc length of 48.22' to the first mentioned point and place of beginning;

Be the contents thereof what they may.

Subject to the applicable notes and easements as shown on the above mentioned Record Plan.

Prepared By: _____ Checked By: [initials]

9 January 1989
Project: Lot No.22-72, Hunter's Ridge
Project No.8028

Description of property situate in Mill Creek Hundred, New Castle County, State of Delaware, being Lot No. 22-72,inclusive and three (3) unnumbered parcels designated as private open space as shown on the Record Major Subdivision Plan of Hunter's Ridge, prepared by Franco R. Bellafante, Inc.; recorded in the Office of the Recorder of Deeds in and for New Castle County, State of Delaware, in Microfilm No. . The said property being more particularly bounded and described as follows, ,to wit:

Beginning at a point on the southeasterly side of Haystack Drive, at 60 feet wide, being the northeasterly end of the junction curve having a radius of 30.00' joining the southeasterly side of Haystack Drive at 60 feet wide witht he northerly side of Polly Drummond Road also known as Ebenezer Church Road;

Thence from the point and place of Beginning, along the southeasterly side of Haystack Drive at 60 feet wide, North 51°-30'-00" East 125.58' to the southwesterly end of the junction curve having a radius of 25.00' joining the southeasterly side of Haystack Drive with the southwesterly side of Paddock Drive at 50' feet wide;

Thence by said curve to the right having a radius of 25.00', an arc length of 36.22' to a point of tangency on the southwesterly side of Paddock Drive;

Thence along the sides of Paddock Drive by the following four (4) courses and distances; (1) South 45°-30'-00" East 137.65' to a point of curvature; (2) by a curve to the right having a radius of 30.00' and arc length of 36.67' to a point of reverse curvature; (3) by a curve to the left having a radius of 52.00' an arc length of 226.92' to a point of tangency; (4) North 45°-30'-00" West, 202.45' to the southerly end of the junction curve joining the northeasterly side of Paddock Drive with the southeasterly side of Haystack Drive at 60 feet wide;

Thence by said curve to the right having a radius of 25.00' an arc length of 42.32' to point of tangency on the southeasterly side of Haystack Drive;

Thence along the southeasterly side of Haystack Drive by the following two (2) courses and distances; (1) North 51°-30'-00" East 177.87' to a point of curvature; (2) by a curve to the left having a radius of 375.00' an arc length of 57.72' to the southwesterly end of the junction curve having a radius of 25.00' joining the southeasterly side of Haystack Drive at 60 feet wide with the southwesterly side of Bridle Path Drive at 50 feet wide;

Thence by said curve to the right having a radius of 25.00' an arc length of 36.14' to a point of tangency on the southwesterly side of Bridle Path Drive at 50 feet wide;

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Thence along the side of Bridle Path Drive by the following five (5) courses and distances; (1) South 54°-30'-00" East 137.32' to a point of curvature; (2) by a curve to the right having a radius of 30.00'; an arc[?] length of 25.07' to a point of reverse curvature; (3) by a curve to the left having a radius of 52.00', an arc length[?] of 250.27' to a point of reverse curvature; (4) by a curve to the right having a radius of 30.00', an arc length[?] of 25.07' to a point of tangency; (5) North 54°-30'-00" West, 137.32' to southeasterly end of the junction curve[?] joining the northeasterly side of Bridle Path Drive with the southeasterly side of Haystack Drive at 60 feet[?] wide;

Thence by said curve to the right having a radius of 25.00'; an arc length of 36.14' to a point of reverse[?] curvature on the southeasterly side of Haystack Drive;

Thence along the sides of Haystack Drive; are the following twenty-three 23 courses and distances; [illegible] by a curve to the left having a radius of 375.00'; an arc length of 120.63' to a point of reverse curvature; [illegible] by a curve to the right having a radius of 30.00'; an arc length of 33.65'to a point of reverse curvature; (3) [illegible] a curve to the left having a radius of 75.00'; an arc length of 185.29' to a point of reverse curvature; (4) by [illegible] curve[?] to the right having a radius of 30.00', an arc length of 38.43' to a point of tangency; (5) North 06°-00'-[illegible] East, 11.96' to a point of curvature; (6) by a curve to the right having a radius of 140.00', an arc length of [illegible]5.06' to a point of tangency; (7) North 53°-30'-00"; East,

75.84' to a point of curvature; (8) by a curve to the right[?] having a radius of 30.00'; an arc length of 35.59' to a point of reverse curvature; (9) by a curve to the left[?] having a radius of 50.00'; an arc length of 59.32' to a point of tangency; (10) North 53°-30'-00" East, 160.00' [illegible] a point of curvature; (11) by a curve to the left having a radius of 50.00', an arc length of 59.32' to a point [illegible] reverse curvature; (12) by a curve to the right having a radius of 30.00'; an arc length of 35.59' to a point of tangency[?]; (13) North 53°-30'-00" East; 84.13' to a point of curvature; (14) by a curve to the right having a radius[?] of 155.00'; an arc length of 243.47' to a point of tangency; (15) South 36°-30'-00" East; 128.28' to a point [illegible] curvature; (16) by a curve to the right having a radius of 100.00', an arc length of 153.59' to a point of tangency[?]; (17) South 51°-30'.00" West; 435.96' to a point of curvature; (18) by a curve to the left having a radius[?] of 52.00'; an arc length of 226.92' to a point of reverse curvature; (19) by a curve to the right having a radius[?] of 30.00', an arc length of 36.67' to a point of tangency; (20) North 51°-30'-00" East, 358.89' to a point of curvature[?]; (21) by a curve to the left having a radius of 150.00', an arc length of 230.38' to a point of tangency[?]; (22) North 36°-30'-00" West, 128.28' to a point of curvature; (23) by a curve to the left having a radius[?] of 205.00', an arc length of 117.24' to the easterly end of the junction curve joining the northerly side [illegible] Haystack Drive at 50 feet wide with the southerly side of Palomino Drive at 50 feet wide;

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Thence by said curve to the right having a radius of 25.00', an arc length of 41.66' to the northerly end of said curve;

Thence along the sides of Palomino Drive by the following six (6) courses and distances; (1) by a curve to the right having a radius of 150.00', an arc length of 76.65' to a point of tangency; (2) North 55°-30'-00" East, 340.00' to a point of curvature; (3) by a curve to the right having a radius of 100.00', an arc length of 35.86' to a point of compounc curvature; (4) by a curve to the right having a radius of 30.00', an arc length of 52.43' to a point of reverse curvature; (5) by a curve to the left having a radius of 52.00'; an arc length of 203.91' to a point of compound curvature; (6) by a curve to the left having a radius of 150.00'; an arc length of 68.55' to a point on the northerly side of Palomino Drive;

Thence leaving the northerly side of Palomino Drive along the division line between Lot No. 22 and Lands of Ralph and Kathleen Degli Obbizi; North 41°-12'-16" East; 241.78' to a corner of said lands; a point in line of Parcel No. 2 being other lands of Ralph and Kathleen Degli Obizzi;

Thence along the lands of Parcel No. 2 the following two (2) courses and distances; (1) South 11°-35'-42" East, 329.55' to a point; (2) South 21°-35'-42" East, 282.12' to a corner of the Foxfire subdivision;

Thence leaving the subdivision line of Parcel No. 2; along the subdivision line of Foxfire and lands now [handwritten: or] formerly of Steven M. and Mary Vansant; South 47°-47'-23" West; 2074.77' to a corner on the northeasterly side of Polly Drummond Road;

Thence leaving the line of lands now [handwritten: or] formerly of Steven M. and Mary Vansant; along the norhteasterly side of Polly Drommond Road; North 44°-35'-05" West, 384.56' to the southerly end of a junction curve joining the northeasterly side of Polly Drommond Road with the southeasterly end of of Haystack Drive;

Thence by said curve to the right having a radius of 30.00', an arc length of 50.31' to the first mentioned point and place of Beginning;

Containing within said Metes and Bounds, 23,930 acres, more or less.

Prepared By: Checked By: [initials]

[stamp: RECD FOR RECORD JAN 11 1989 [handwritten: 4:16] WILLIAM M. HONEY, Recorder]

Transcription Notes

- p. 1: "289" is printed in numbering-machine style in the left margin beside the title; its meaning is not stated (possibly an instrument or sequence number), and it is not treated as a page number.
- p. 1: The blanks after "recorded" and after "Microfilm No." were left unfilled in the original.
- p. 1: "Declarant are" is kept as printed, including the subject-verb disagreement.
- p. 2: "above-ground" (paragraph 5) falls at a line end ("above-/ground"); the hyphen is kept as intrinsic, but it could also be "aboveground".
- p. 3: "paying fields" is kept as printed; the word clearly reads "paying" and may be an original typo for "playing".
- p. 3: "Private Open Space" is singular on its first appearance and "Private Open Spaces" is plural twice later, and "Association" is capitalized once ("members of the Association, or a majority") and lowercase elsewhere, all as printed.
- p. 4: Apparent typos and grammar slips kept as printed: "created cr when" (for "or") in (g), "said assessment are made" in (e), "improvement thereon" in paragraph 7, and "any mortgage or mortgage whatsoever" at the end of (g).
- p. 5: Kept as printed: "its successors or assign" (singular "assign"), "prorata" as one word, and "record fee".
- p. 6: Commas are missing in the original in "maintenance association its successors" (14(a)) and "modified amended or altered" (paragraph 16), and the closing period in 14(a) follows the closing quotation mark.
- p. 7: Three witness signatures appear in the left column with no printed witness names, one beside each Schlosser line and the third on the same line as "BY:"; Dennis W. Neal signs after "BY:" and Terry D. Neal after "ATTEST:".

- p. 7: The "(SEAL)" labels are printed, but no corporate seal impression is visible even though the text says the corporate seal was affixed.
- p. 8: The second acknowledgment (Dorothy J. Schlosser) reads "his act and deed" as typed.
- p. 8: The notary's signature is an illegible scrawl in both blocks and overlaps a circular seal whose text is mostly unreadable.
- p. 9: "won proper handwriting" is an original typo (for "own") and is kept verbatim.
- p. 9: The notary's signature is an illegible scrawl, no notary name is printed, and the seal is stamped over the signature and commission line.
- p. 10: The blank after "Microfilm No." was never filled in; the matching survey exhibit in the other Declaration (19 Jan 1989 Declaration of Restrictions) has "9600" handwritten in that blank.
- p. 10: "Hunters Ridge" (no apostrophe) in the opening paragraph and "Hunter's Ridge" later, and "Lot No's", are all as printed.
- p. 11: "west" in course (16) is lowercase as printed, and course (15) and the closing "Thence" paragraph read "and arc length" (no "an"), as printed.
- p. 11: The "Prepared By:" blank is empty, and "Checked By:" has handwritten initials that appear to read "L.B.".
- p. 12: The left edge of this copy is clipped, so several words were completed from the letters that remain.
- p. 12: The blank after "Microfilm No." was never filled in; the matching survey exhibit in the other Declaration has "9600" handwritten in that blank.
- p. 12: "follows, ,to wit:" has a second comma-shaped mark before "to", while the matching survey exhibit in the other Declaration reads "follows, to wit:" with a single comma.
- p. 12: "witht he" (misplaced space), "at 50' feet wide" (foot mark before "feet"), and "to point of tangency" (no "a") are kept as printed.
- p. 12: "Bellafante" (in lighter type) and "Bridle" (both times, in slightly different type) look like typed-in corrections, with underlines under part of "Bellafante" and under the first "Bridle" that are not emphasis.
- p. 13: The left edge of this copy is cut off, so the first one to four characters of nearly every line are missing; words restored from a surviving fragment are marked [?], and text with no trace left is marked [illegible] with nothing supplied.
- p. 13: The day number before "January 1989" in the header is cut off in this copy; "9" is supplied from the matching headers on pages 12 and 14.
- p. 13: Wholly cut-off words: the labels before the first two "by a curve" clauses of the Haystack Drive list (presumably "(1)" and "(2)"), the word before "a curve" in course (3) (presumably "by"), the word between "by" and "curve" in course (4) (presumably "a"), the word before "a point of curvature" after 160.00' (presumably "to"), and the words before "reverse curvature" in course (11), before "curvature" in course (15), and before "Haystack Drive" on the last line (presumably "of").
- p. 13: In course (5) the seconds of the bearing are cut off ("North 06°-00'-[illegible] East"), and in course (6) only "5.06'" of the arc length survives; a 140.00' radius over the 47°30' turn would suggest about 116.06', but that is not visible and was not supplied.

- p. 13: The blobby 8 glyph makes "8028", "185.29'" (decimal point looks comma-like), "84.13'", "128.28'" (twice), "358.89'" and "230.38'" harder to read; all are read as transcribed.
- p. 13: Punctuation is kept as printed: "Drive; are the following", "twenty-three 23" (no parentheses), "33.65'to" (no space), "North 53°-30'-00"; East," (semicolon after the seconds mark) in course (7), "South 51°-30'.00" West;" (period between minutes and seconds) in course (17), and semicolons versus commas after radius figures and direction words vary.
- p. 13: "Bridle" in the first paragraph is in a different, irregular typeface, as if typed in separately.
- p. 13: "30.00';" in course (2) of the first paragraph differs from the matching survey exhibit in the other Declaration (19 Jan 1989 Declaration of Restrictions), which reads "30.00',"; the semicolon-position dot is kept as printed.
- p. 14: Spellings kept as printed: "Obbizi" here versus "Obizzi" elsewhere, "Drummond" once versus "Drommond" twice, "norhteasterly" (while "northeasterly" later in the same paragraph is correct), "of of Haystack", and "compounc curvature" in item (3), whose last letter has no ascender and is filled with ink.
- p. 14: "23,930 acres" is printed with a comma where a decimal point would be expected; the matching survey exhibit in the other Declaration (19 Jan 1989 Declaration of Restrictions) also reads "23,930".
- p. 14: The word "or" is handwritten with a caret between "now" and "formerly" in both places.
- p. 14: "Prepared By:" is blank, and "Checked By:" has handwritten initials reading approximately "LR".